

(S E R V E D)
(SEPTEMBER 23, 2004)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

PETITION NO. P5-04

**PETITION OF AMERICAN PRESIDENT LINES, LTD., AND
APL CO. PTE. LTD., FOR A FULL EXEMPTION FROM THE FIRST
SENTENCE OF SECTION 9(C) OF THE SHIPPING ACT OF 1984, AS AMENDED**

NOTICE OF FILING

Notice is hereby given that American President Lines, Ltd., and APL Co. Pte. Ltd., (“Petitioners”) have petitioned, pursuant to Section 16 of the Shipping Act of 1984, 46 U.S.C. app. § 1715, and 46 C.F.R. § 502.69, for a full exemption from the first sentence of Section 9(c) of the 1984 Act, 46 U.S.C. app. §1708(c).^{*} Petitioners seek an exemption to permit them to reduce their tariff rates, charges, classifications, rules or regulations, effective upon publication.

In order for the Commission to make a thorough evaluation of the Petition, interested persons are requested to submit views or arguments in reply to the Petition no later than October 12, 2004. Replies shall consist of an original and 15 copies, be directed to the Secretary, Federal Maritime Commission, 800 North Capitol Street, N.W., Washington, DC 20573-0001,

^{*} While Petitioners, at the time they filed their Petition, do not meet the statutory definition of a controlled carrier within the meaning of the Shipping Act of 1984, as amended, Petitioners advise that they anticipate meeting this statutory definition in the very near future.

and be served on Petitioner's counsel, Robert T. Basseches, Esq., or David B. Cook, Esq., Shea & Gardner, 1800 Massachusetts Avenue, N.W., Washington, DC 20036. It is also requested that a copy of the reply be submitted in electronic form (WordPerfect, Word, or ASCII) on diskette, or e-mailed to secretary@fmc.gov.

Copies of the Petition are available at the Office of the Secretary, Federal Maritime Commission, 800 North Capitol Street, N.W., Room 1046. A copy may also be obtained by sending a request to secretary@fmc.gov or by calling 202-523-5725. Parties participating in this proceeding may elect to receive service of the Commission's issuances in this proceeding through e-mail in lieu of service by U.S. mail. A party opting for electronic service shall advise the Office of the Secretary in writing and provide an e-mail address where service can be made. By the Commission.

A handwritten signature in black ink, appearing to read 'Bryant L. VanBrakle', written in a cursive style.

Bryant L. VanBrakle
Secretary

of the information to be collected; and ways to minimize the burden to respondents, including use of automated information collection techniques or other forms of information technology.

DATES: Comments on this information collection must be received on or before November 29, 2004.

ADDRESSES: Send comments to Ben Henson, Executive Director, Appraisal Subcommittee, 2000 K Street, NW., Suite 310, Washington, DC 20006.

FOR FURTHER INFORMATION CONTACT: Marc L. Weinberg, General Counsel, Appraisal Subcommittee, at 2000 K Street, NW., Suite 310, Washington, DC 20006 or 202-293-6250.

SUPPLEMENTARY INFORMATION:

Title: 12 CFR part 1102, subpart C; Rules Pertaining to the privacy of Individuals and Systems of Records Maintained by the Appraisal Subcommittee.

ASC Form Number: None.

OMB Number: 3139-0004.

Expiration Date: Three years from OMB approval date.

Type of Request: Extension of existing collection of information.

Description of Need: The information sets out detailed procedures implementing the Privacy Act of 1974, as amended. 12 U.S.C. 552a.

Automated Data Collection: None.

Description of Respondents: State, local or Tribal government; individuals or households; not-for-profit institutions; farms; business or other for-profit; and Federal government.

Estimated Average Number of Respondents: 4 respondents.

Estimated Average Number of Responses: Once per respondent.

Estimated Average Burden Hours per Response: 4.25 hours.

Estimated Annual Reporting Burden: 17 hours.

By the Appraisal Subcommittee of the Federal Financial Institutions Examination Council.

Dated: September 22, 2004.

Ben Henson,

Executive Director.

[FR Doc. 04-21636 Filed 9-27-04; 8:45 am]

BILLING CODE 6700-01-M

FEDERAL FINANCIAL INSTITUTIONS EXAMINATION COUNCIL

Appraisal Subcommittee; 60 Day Notice of Intent to Request Clearance for Extension of Collection of Information; Opportunity for Public Comment

AGENCY: Appraisal Subcommittee, Federal Financial Institutions Examination Council.

ACTION: Notice of intent to request from the Office of Management and Budget ("OMB") clearance for extension of collections of information and request for comments.

SUMMARY: In accordance with the Paperwork Reduction Act of 1995 and 5 CFR part 1320, Reporting and Recordkeeping Requirements, the Appraisal Subcommittee of the Federal Financial Institutions Examination Council ("ASC") is soliciting comments on the need for the collection of information contained in 12 CFR part 1102, subpart D, Description of Office, Procedures, Public Information. The ASC also requests comments on the practical utility of the collection of information; the accuracy of the burden hour estimate; ways to enhance the quality, utility, and clarity of the information to be collected; and ways to minimize the burden to respondents, including use of automated information collection techniques or other forms of information technology.

DATES: Comments on this information collection must be received on or before November 29, 2004.

ADDRESSES: Send comments to Ben Henson, Executive Director, Appraisal Subcommittee, 2000 K Street, NW., Suite 310, Washington, DC 20006.

FOR FURTHER INFORMATION CONTACT: Marc L. Weinberg, General Counsel, Appraisal Subcommittee, at 2000 K Street, NW., Suite 310, Washington, DC 20006 or 202-293-6250.

SUPPLEMENTARY INFORMATION:

Title: 12 CFR part 1102, subpart D; Description of Office, Procedures, Public Information.

ASC Form Number: None.

OMB Number: 3139-0006.

Expiration Date: Three years from OMB approval date.

Type of Request: Extension of existing collection of information.

Description of Need: The information sets out detailed procedures implementing the Freedom of Information Act, as amended. 12 U.S.C. 552.

Automated Data Collection: None.

Description of Respondents: State, local or Tribal government; individuals

or households; business or other for-profit institutions; not-for-profit institutions; farms; and Federal government.

Estimated Average Number of Respondents: 11 respondents.

Estimated Average Number of Responses: Once per respondent.

Estimated Average Burden Hours Per Response: .5 hours.

Estimated Annual Reporting Burden: 5.5 hours.

By the Appraisal Subcommittee of the Federal Financial Institutions Examination Council.

Dated: September 22, 2004.

Ben Henson,

Executive Director.

[FR Doc. 04-21637 Filed 9-27-04; 8:45 am]

BILLING CODE 6700-01-P

FEDERAL MARITIME COMMISSION

[Petition No. P5-04]

Petition of American President Lines, Ltd., and APL Co. Pte. Ltd., for a Full Exemption From the First Sentence of Section 9(c) of the Shipping Act of 1984, as Amended; Notice of Filing

Notice is hereby given that American President Lines, Ltd., and APL Co. Pte. Ltd., ("Petitioners") have petitioned, pursuant to Section 16 of the Shipping Act of 1984, 46 U.S.C. app. 1715, and 46 CFR 502.69, for a full exemption from the first sentence of Section 9(c) of the 1984 Act, 46 U.S.C. app. 1708(c).^{*} Petitioners seek an exemption to permit them to reduce their tariff rates, charges, classifications, rules or regulations, effective upon publication.

In order for the Commission to make a thorough evaluation of the Petition, interested persons are requested to submit views or arguments in reply to the Petition no later than October 12, 2004. Replies shall consist of an original and 15 copies, be directed to the Secretary, Federal Maritime Commission, 800 North Capitol Street, NW., Washington, DC 20573-0001, and be served on Petitioner's counsel, Robert T. Basseches, Esq., or David B. Cook, Esq., Shea & Gardner, 1800 Massachusetts Avenue, NW., Washington, DC 20036. It is also requested that a copy of the reply be submitted in electronic form (WordPerfect, Word, or ASCII) on

^{*} While Petitioners, at the time they filed their Petition, do not meet the statutory definition of a controlled carrier within the meaning of the Shipping Act of 1984, as amended, Petitioners advise that they anticipate meeting this statutory definition in the very near future.

diskette, or e-mailed to secretary@fmc.gov.

Copies of the Petition are available at the Office of the Secretary, Federal Maritime Commission, 800 North Capitol Street, NW., Room 1046. A copy may also be obtained by sending a request to secretary@fmc.gov or by calling 202-523-5725. Parties participating in this proceeding may elect to receive service of the Commission's issuances in this proceeding through e-mail in lieu of service by U.S. mail. A party opting for electronic service shall advise the Office of the Secretary in writing and provide an e-mail address where service can be made.

By the Commission.

Bryant L. VanBrakle,
Secretary.

[FR Doc. 04-21743 Filed 9-27-04; 8:45 am]

BILLING CODE 6730-01-P

FEDERAL RESERVE SYSTEM

Formations of, Acquisitions by, and Mergers of Bank Holding Companies

The companies listed in this notice have applied to the Board for approval, pursuant to the Bank Holding Company Act of 1956 (12 U.S.C. 1841 *et seq.*) (BHC Act), Regulation Y (12 CFR Part 225), and all other applicable statutes and regulations to become a bank holding company and/or to acquire the assets or the ownership of, control of, or the power to vote shares of a bank or bank holding company and all of the banks and nonbanking companies owned by the bank holding company, including the companies listed below.

The applications listed below, as well as other related filings required by the Board, are available for immediate inspection at the Federal Reserve Bank indicated. The application also will be available for inspection at the offices of the Board of Governors. Interested persons may express their views in writing on the standards enumerated in the BHC Act (12 U.S.C. 1842(c)). If the proposal also involves the acquisition of a nonbanking company, the review also includes whether the acquisition of the nonbanking company complies with the standards in section 4 of the BHC Act (12 U.S.C. 1843). Unless otherwise noted, nonbanking activities will be conducted throughout the United States. Additional information on all bank holding companies may be obtained from the National Information Center website at www.ffiec.gov/nic/.

Unless otherwise noted, comments regarding each of these applications

must be received at the Reserve Bank indicated or the offices of the Board of Governors not later than October 22, 2004.

A. Federal Reserve Bank of New York (Jay Bernstein, Bank Supervision Officer) 33 Liberty Street, New York, New York 10045-0001:

1. *Popular, Inc., Popular International Bank, Inc., and Popular North America*, all of San Juan, Puerto Rico; to acquire 100 percent of the voting shares of Kislak Financial Corporation, and thereby indirectly acquire voting shares of Kislak National Bank, both of Miami Lakes, Florida.

B. Federal Reserve Bank of Minneapolis (Jacqueline G. Nicholas, Community Affairs Officer) 90 Hennepin Avenue, Minneapolis, Minnesota 55480-0291:

1. *Marshall Bancorp, Inc.*, Minneapolis, Minnesota; to acquire 100 percent of the voting shares of BANKFIRST Corporation, Sioux Falls, South Dakota, and thereby indirectly acquire voting shares of BANKFIRST, Sioux Falls, South Dakota.

2. *State Bankshares, Inc.*, Fargo, North Dakota; to acquire 100 percent of the voting shares of First State Bank of Audubon, Audubon, Minnesota.

Board of Governors of the Federal Reserve System, September 22, 2004.

Robert deV. Frierson,
Deputy Secretary of the Board.

[FR Doc. 04-21634 Filed 9-27-04; 8:45 am]

BILLING CODE 6210-01-S

FEDERAL RESERVE SYSTEM

Notice of Proposals to Engage in Permissible Nonbanking Activities or to Acquire Companies that are Engaged in Permissible Nonbanking Activities

The companies listed in this notice have given notice under section 4 of the Bank Holding Company Act (12 U.S.C. 1843) (BHC Act) and Regulation Y (12 CFR Part 225) to engage *de novo*, or to acquire or control voting securities or assets of a company, including the companies listed below, that engages either directly or through a subsidiary or other company, in a nonbanking activity that is listed in § 225.28 of Regulation Y (12 CFR 225.28) or that the Board has determined by Order to be closely related to banking and permissible for bank holding companies. Unless otherwise noted, these activities will be conducted throughout the United States.

Each notice is available for inspection at the Federal Reserve Bank indicated. The notice also will be available for inspection at the offices of the Board of

Governors. Interested persons may express their views in writing on the question whether the proposal complies with the standards of section 4 of the BHC Act. Additional information on all bank holding companies may be obtained from the National Information Center website at www.ffiec.gov/nic/.

Unless otherwise noted, comments regarding the applications must be received at the Reserve Bank indicated or the offices of the Board of Governors not later than October 12, 2004.

A. Federal Reserve Bank of Chicago (Patrick Wilder, Assistant Vice President) 230 South LaSalle Street, Chicago, Illinois 60690-1414:

1. *Marshall & Ilsley Corporation*, Milwaukee, Wisconsin; through its subsidiary, Metavante Corporation, to acquire NuEdge Systems, LLC, Brookfield, Wisconsin, and thereby engage in data processing, pursuant to section 225.28(b)(14)(i) of Regulation Y.

Board of Governors of the Federal Reserve System, September 22, 2004.

Robert deV. Frierson,
Deputy Secretary of the Board.

[FR Doc. 04-21633 Filed 9-27-04; 8:45 am]

BILLING CODE 6210-01-S

FEDERAL RESERVE SYSTEM

[Docket No. OP-1182]

Policy Statement on Payments System Risk

AGENCY: Board of Governors of the Federal Reserve System.

ACTION: Policy statement.

SUMMARY: The Board has revised its Policy Statement on Payments System Risk (PSR policy) to modify the daylight overdraft measurement rules ("posting rules") for interest and redemption payments on securities issued by entities for which the Reserve Banks act as fiscal agents but whose securities are not obligations of, or fully guaranteed as to principal and interest by, the United States—that is, securities issued by government-sponsored enterprises (GSEs) and certain international organizations. In connection with this policy change, the Board supports the formation of an industry working group to promote a smooth transition through collaborative discussion of implementation issues. The working group will be coordinated through the Federal Reserve Banks' Wholesale Product Office in New York; organizations that commented on the planned policy changes, members of those organizations, and fiscal principals to whom the policy applies will be invited to participate.